

22GDCV00917 22GDCV00917

County: los-angeles

Division: Civil Law and Motion

Department: D

Hearing date: 2026-08-21

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Case Number: 22GDCV00917 Hearing Date: August 21, 2026 Dept: D

TENTATIVE RULING

Calendar: 16

Date: August 21, 2026

Case No: 22GDCV00917 Trial Date: November 9, 2026

Case Name: Shahinyan v. City of Glendale, et al.

MOTION FOR SUMMARY JUDGMENT

[CCP § 437c]

Moving Party: Defendant, David Avedissian

Responding Party: Plaintiff, Stepan Shahinyan [Unopposed]

RELIEF REQUESTED:

An order granting summary judgment, or in the alternative, summary adjudication

CAUSES OF ACTION: from Complaint

1) Negligent Entrustment

2) Defective Design and Dangerous Condition of Public Property

CAUSES OF ACTION: from City of Glendale's Cross-Complaint

- 1) Implied Indemnity
- 2) Express Indemnity
- 3) Contribution
- 4) Comparative Fault
- 5) Equitable Indemnity
- 6) Declaratory Relief

REQUEST FOR JUDICIAL NOTICE:

The Court may take judicial notice of "[r]ecords of (1) any court of this state or (2) any court of record of the United States or of any state of the United States." (Evidence Code, § 452, subd. (d).)

Pursuant to Defendant's request, the Court takes judicial notice of: (1) the Complaint filed in this action; and (2) Defendant's Answer to the Complaint.

SUMMARY OF FACTS:

The Complaint alleges that on November 15, 2021, while crossing the crosswalk between 219 North Brand Boulevard and 216 North Brand Boulevard, in Glendale, California 91203, Stepan Shahinyan ("Plaintiff") was struck by a vehicle driven by Vivian Avedissian, who failed to yield the right of right and subsequently fled the scene. Plaintiff was taken to the hospital and diagnosed with a displaced right orbital fracture, requiring surgery, among other injuries. Plaintiff alleges that defendant David Avedissian ("Defendant") owned, maintained and controlled the subject vehicle and negligently entrusted said vehicle to his mother, Vivian Avedissian. Plaintiff further alleges that the crosswalk was dangerously and defectively planned, designed, drafted, engineered, constructed and positioned.

ANALYSIS:

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party can show evidentiary support for a pleading or claim and, if not, to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) CCP section 437c, subdivision (c) "requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.) "The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings." (Juge v. County of Sacramento (1993) 12 Cal.App.4th 59, 67, citing FPI Development, Inc. v. Nakashima (1991) 231 Cal. App. 3d 367, 381-82.)

As to each claim as framed by the complaint, the defendant or cross-defendant must satisfy the initial burden of proof by showing that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. (CCP, § 437c subd. (p)(2).) Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. (CCP, § 437c subd. (p)(2).) To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 166.)

“On a summary judgment motion, the court must therefore consider what inferences favoring the opposing party a factfinder could reasonably draw from the evidence. While viewing the evidence in this manner, the court must bear in mind that its primary function is to identify issues rather than to determine issues. Only when the inferences are indisputable may the court decide the issues as a matter of law. If the evidence is in conflict, the factual issues must be resolved by trial.” (*Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 839.) Further, “the trial court may not weigh the evidence in the manner of a factfinder to determine whose version is more likely true. Nor may the trial court grant summary judgment based on the court’s evaluation of credibility. [Citation.]” (*Id.* at p. 840; see also *Weiss v. People ex rel. Department of Transportation* (2020) 9 Cal.5th 840, 864 [“Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party”].)

First Cause of Action, Negligent Entrustment

“California is one of the several states [that] recognizes the liability of an automobile owner who has entrusted a car to an incompetent, reckless, or inexperienced driver’...through the tort of negligent entrustment.’ [Citation.]” (*McKenna v. Beesley* (2021) 67 Cal.App.5th 552, 565-66.) “Negligent entrustment is a common law liability doctrine, which arises in numerous factual contexts. [Citation.] In cases involving negligent entrustment of a vehicle, liability ‘is imposed on [a] vehicle owner or permitter because of his own independent negligence and not the negligence of the driver.’ [Citations.]” (*Ghezavat v. Harris* (2019) 40 Cal.App.5th 555, 559.) “Liability for the negligence of the incompetent driver to whom an automobile is entrusted does not arise out of the relationship of the parties, but from the act of entrustment of the motor vehicle, with permission to operate the same, to one whose incompetency, inexperience, or recklessness is known or should have been known by the owner.’ [Citations.]” (*Ibid.*)

The elements of negligent entrustment of a vehicle are as follows: (1) the driver was negligent in operating the vehicle; (2) the defendant owner owned the vehicle operated by the driver or had possession of that vehicle with the defendant owner’s permission; (3) the defendant owner knew, or should have known, the driver was incompetent or unfit to drive the vehicle; (4) defendant owner permitted the driver to operate the vehicle regardless; and (5) the driver’s incompetence or unfitness to drive was a substantial factor in causing harm to the plaintiff. (*McKenna*, supra, 67 Cal.App.5th at 566.)

Defendant argues that he is entitled to summary judgment on Plaintiff’s cause of action for negligent entrustment because Defendant had no knowledge that his mother was incompetent or unfit to drive the vehicle. Defendant presents his sworn declaration attesting that at the time of the incident, he “was unaware of any physical, mental, medical or other issues that would have caused me to question, limit or prohibit my mother Vivian Avedissian’s use of the vehicle.” (*Avedissian Decl.*, ¶ 2.) Defendant asserts that he was unaware of any traffic tickets or traffic violations issued to his mother, and that to his knowledge, his mother had never had her driver’s license suspended or revoked. (*Avedissian Decl.*, ¶ 3.) Defendant asserts that to his knowledge, his mother had not been involved in any accidents resulting in bodily injury to anyone. (*Avedissian Decl.*, ¶ 4.) Thus, Defendant argues that Plaintiff does not possess and cannot obtain any evidence that Defendant had any notice, actual or implied, that his mother was incompetent, inexperienced, unfit, to operate the vehicle on the day of the incident.

The Court finds that Defendant has met his burden. Defendant’s undisputed material facts show that he did not know, or have any reason to know, that his mother was incompetent or unfit to drive the vehicle. A defendant’s liability for negligently entrusting a vehicle stems from the defendant’s conscious disregard of the entrusted person’s incompetence or unfitness to drive. (See *Ghezavat*, supra, 40 Cal.App.5th at p. 559.) Here, there is no evidence that Defendant knew, or should have known, that entrusting the vehicle to his mother was likely to create a risk of harm to others, including pedestrians such as Plaintiff.

Accordingly, Defendant has met his burden to show that one or more elements of Plaintiff's cause of action for negligent entrustment cannot be established. The burden thus shifts to Plaintiff to establish that triable issues of fact exist.

Plaintiff did not submit any evidence in opposition to the motion and thus fails to meet his responsive burden. *¿* (Avivi v. Centro Medico Urgente Med. Ctr. (2008) 159 Cal.App.4th 463, 467.)

The motion is GRANTED.

RULING:

Defendant David Avedissian's Motion for Summary Judgment is GRANTED.

Counsel for moving party is ordered to prepare a proposed form of judgment and submit it on eCourt by noon today in accordance with this order.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.